2. Disseminating or causing to be disseminated any advertisement by means of the United States mails, or by any means in commerce, as "commerce" is defined in the Federal Trade Commission Act, which fails to reveal that the use of said preparation on open sores or wounds may result in lead poisoning: *Provided, however,* That such advertisement need contain only the statement, "Caution: Use only as directed," if and when the directions for use, wherever they appear on the label, in the labeling, or both on the label and in the labeling, contain a warning to the above effect.

3. Disseminating or causing to be disseminated any advertisement by any means for the purpose of inducing, or which is likely to induce, directly or indirectly, the purchase of said preparation in commerce, as "commerce" is defined in the Federal Trade Commission Act, which advertisement contains any representation prohibited in paragraph 1 hereof, or which fails to comply with the affirmative requirements set forth in paragraph 2 hereof.

It is further ordered, That the respondent shall, within sixty (60) days after service upon her of this order, file with the Commission a report in writing setting forth in detail the manner and form in which she has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 46-550; Filed, Jan. 10, 1946; 11:25 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Reg. S-14]

PART 105—ACCOUNTS

MISCELLANEOUS AMENDMENTS

Pursuant to the authority vested in me by R. S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (3 CFR, 1944 Supp., 66), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), §§ 105.27, 105.29, 105.31, 105.32, 105.33, 105.35, 105.36, 105.39, 105.40, 105.42, 105.44, 105.45, 105.53, 105.54, 105.56, and 105.57 are amended, § 105.48 is revoked, and §§ 105.58 and 105.59 are added, as follows:

§ 105.27 *Telegraph and telephone service.* (a) Discretion should be exercised in the use of telegraph or cable service or the telephone at Government expense, and ordinarily such use should be restricted to cases of urgency where delay would result in injury or be prejudicial to the public or legitimate private interests, or where the purpose cannot be accomplished by the use of ordinary or air mail services. (See § 106.2 of this chapter.)

(b) When an application for leave of absence is made by a diplomatic or consular officer or any employee by telegraph or telephone, the cost thereof shall be borne by him personally, and if a reply to such an application is forwarded by telegraph or telephone the cost thereof shall also be charged to him: *Provided, however,* That the Secretary of State may in either case determine that the messages relate to official business.

(c) Canceled.

(d) Whenever the Secretary of State, in his discretion, procures information on behalf of corporations, firms, and individuals, the expense of cablegrams and telephone service involved may be charged against the respective appropriations for the service utilized, and reimbursement therefor shall be required from those for whom the information was procured, and, when made, be credited to the appropriation under which the expenditure was charged. (5 U.S.C. 169.) Such expenses should be incurred only upon prepayment by the interested party of all charges or satisfactory assurance of payment. (See § 106.2 of this chapter.)

(e) *Contracts for telephone service required.* Officers in charge must forward to the Department in accordance with § 105.26, original contracts or agreements for telephone service at their offices, if such contracts have been made or are obtainable. If it is not possible to obtain a written contract or agreement, the facts should be fully explained. A list of toll rates should be forwarded with the contract and a revised list should be forwarded for filing with that contract whenever changes in rates are made.

§ 105.29 *Ambassadors, ministers, ministers resident, commissioners and chargés d'affaires*—(a) *Ambassadors and ministers.* Ambassadors and ministers are entitled to compensation at the rate prescribed according to law. (See § 101.6 of this chapter.)

(b) *Ministers resident, commissioners and chargés d'affaires.* Unless otherwise provided by law, ministers resident and commissioners shall be entitled to compensation at the rate of 75 per centum, and chargés d'affaires ad interim at the rate of 50 per centum, of the amounts allowed to ambassadors extraordinary and plenipotentiary and envoys extraordinary and ministers plenipotentiary to the respective countries. (See § 101.6 of this chapter.) (22 U.S.C. 19, 20, 32)

§ 105.31 *Vice consuls commissioned by the Secretary of State and officers of the Foreign Service assigned for special duty.* (a) Vice consuls commissioned by the Secretary of State, other than those mentioned in § 105.35 shall receive compensation at the rates authorized by the Department of State, including salaries while under instruction in the United States and during transit to and from homes in the United States upon the beginning and after termination of their services, as provided by the applicable appropriation or other act. (See § 105.42.)

(b) Persons assigned for special duty as officers of the Foreign Service in accordance with section 10 (c) of the act of February 23, 1931, as amended, shall be paid their authorized salaries throughout the periods of such assignment from the appropriations provided for the Department of State.

§ 105.32 *Administrative, fiscal and clerical personnel and Foreign Service Auxiliary personnel.* (a) Administrative, fiscal and clerical personnel of the Foreign Service who are not paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation at the rates prescribed by section 1 of the act of February 23, 1931, as amended, or as fixed by the Department of State in accordance with the provisions § 101.6 of this chapter, including salaries while under instruction in the United States and during transit to and from homes in the United States upon the beginning and after termination of their services, as provided by the applicable appropriation or other act. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis of the individual personnel actions at the rates fixed by the Secretary of State in accordance with law.

(b) Foreign Service Auxiliary (noncareer) officers and employees who are not paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation at the rates authorized by the Department of State, including salaries while under instruction in the United States and during transit to and from their homes in the United States upon the beginning and after termination of their services in the same manner and under the same conditions as other officers and employees of the Foreign Service of like rank and position, in accordance with the provisions of the applicable authority for the Foreign Service Auxiliary. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis and at the rates fixed in accordance with law.

§ 105.33 *Miscellaneous employees.* Miscellaneous employees of the Foreign Service shall receive compensation at the rates authorized by the Department of State in accordance with the provision of § 101.6 of this chapter, including salaries while under instruction in the United States and during transit to and from their homes in the United States upon the beginning and after termination of their services in foreign countries, or as provided by the current appropriation act or other law. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis and at the rates fixed in accordance with law.

§ 105.35 *Vice consuls who receive compensation while in charge only.* Vice consuls commissioned by the Secretary of State who receive compensation while in charge only shall receive compensation for such periods in the amount of one-half of the aggregate compensation of the last principal officer of the post. (See § 105.37.) (22 U.S.C. 20; 43 Stat. 1016; Dec. Comp. Gen. May 20, 1943, B-8442)

§ 105.36 *Salaries and allowances of deceased or incompetent officers and employees.* (a) When officers or employees die or become incompetent and there is any unpaid salary, allowance, or other amount due them, claim must be made therefor on forms specially prescribed for that purpose. (See § 105.56.) These amounts are not to be paid by officers of the Foreign Service unless claims therefor have been allowed by the Claims Division of the General Accounting Office and a copy of the settlement has been sent to the officer by the Department with instructions to make the payment.

(b) Canceled.

(c) When an officer or employee dies his salary or compensation ceases at the close of business on the date of death. However, compensation for all his accumulated and current accrued annual leave in a lump sum equal to the compensation that such employee would have received had he remained in the service until the expiration of the period of such leave is payable upon submission to the Department of a claim prepared in accordance with § 105.56, as follows:

First, to the beneficiary or beneficiaries, if any, lawfully designated by the employee under the retirement act applicable to his service;

Second, if there be no such designated beneficiary, to the estate of such deceased employee. (58 Stat. 845.)

Claims for lump-sum payments forwarded to the Department from offices abroad should be accompanied by a signed statement of the officer in charge showing all annual leave, sick leave and leave without pay used by the officer or employee during the present calendar year and the previous calendar year.

§ 105.39 *Allowance for living quarters, heat, fuel, light, gas and electricity.* (a) Allowances for living quarters, heat, fuel, light, gas and electricity may be granted at all posts to officers and employees who are American citizens within such appropriations as Congress may make for said purpose; *Provided*, That all such allowances shall be accounted for to the Secretary of State in such manner and under such rules and regulations as the President may prescribe, and the authorization and approval of such expenditures by the Secretary of State as complying with such rules and regulations shall be binding upon all officers of the Government. (59 Stat. 102, sections 3 and 8.)

(b) Subject to the provisions of the Regulations Governing the Occupation, Preservation, and Maintenance of Government-owned Foreign Service Properties prescribed by the Secretary of State under authority of § 104.8 of this chapter, and the standardized regulations to govern allowances for living quarters, heat, fuel, and light for civilian officers and employees of the Government stationed in foreign countries, issued by the Director of the Bureau of the Budget, and regulations issued thereunder by the Secretary of State, there may be furnished without cost to officers and employees in the Foreign Service living quarters, including heat, fuel, light, and household equipment in Government-owned or rented buildings, at places where, in the judgment of the Secretary of State, it is in the public interest to do so, and where such quarters are not available officers and employees who are citizens of the United States may be granted an allowance for living quarters including heat, fuel, and light. Such rented quarters or allowances in lieu thereof may be furnished only within the limits of the appropriations made therefor. (5 U.S.C. 118a; 22 U.S.C. 291)

§ 105.40 *Representation and post (cost of living) allowances.* Within the limitations of such appropriations as may be made therefor, ambassadors, ministers, diplomatic, consular, and Foreign Service officers may be granted allowances for representation, and these officers and clerks and other employees of the Foreign Service who are American citizens may be granted post (cost of living) allowances wherever the cost of living may be proportionately so high that in the opinion of the Secretary of State such allowances are necessary to enable such officers or employees to carry on their work efficiently. All such allowances shall be accounted for to the Secretary of State in such manner and under such rules and regulations as the President may prescribe; and the authorization and approval of such expenditures by the Secretary of State, as complying with such rules and regulations, shall be binding upon all officers of the Government. (22 U.S.C. 12)

§ 105.42 *Limitations regarding payment.* In the payment of compensation the following directions are to be observed:

(a) *Absence from post.* No officer or employee of the Foreign Service shall receive salary for the time during which he is absent from his post, by leave or otherwise, in excess of periods of absence which are authorized by law to be taken with pay. (See § 104.11 of this chapter.) (22 U.S.C. 17, 17a, 124)

(b) *Recall for malfeasance.* (1) No officer of the Foreign Service shall be entitled to compensation in case he is recalled for malfeasance except to the date of the delivery of the notification of recall at the office to which he was last attached or, in the event of his absence therefrom, its delivery at his last known address; or if the officer resigns in anticipation of such recall, he is entitled to compensation only to the date of the acceptance of such resignation. In neither case will compensation be allowed for the time occupied in the transit to the United States. (22 U.S.C. 1, 121; 9 Op. Att. Gen. 89, 92)

(2) No money shall be paid to any person for his compensation who is in arrears to the United States, until he has accounted for and paid into the Treasury all sums for which he may be liable. (5 U.S.C. 82)

(3) There shall be no withholding or confiscation of the earned pay, salary, or emolument of any civil employee of the United States removed for cause: *Provided*, That if at the time of such removal any such employee is indebted to the United States, any salary, pay, or emolument accruing to such employee coming within the provisions of this section shall be applied in whole or in part to the satisfaction of any claim or indebtedness due to the United States. (5 U.S.C. 46a)

(c) *Excess travel time.* No Foreign Service officer or employee traveling under orders or on leave with permission to visit the United States is entitled to salary in transit for any time in excess of that actually and necessarily occupied in proceeding by direct route and generally adopted method of transport from his post to his place of residence or destination in the United States, or vice versa, and such time as may be necessarily occupied in awaiting sailing, except when complying with specific orders issued by the Department of State (§ 104.11 of this chapter.) (22 U.S.C. 17a)

(d) Canceled.

(e) *Extra compensation prohibited.* Except as otherwise provided by statute the compensation allowed by law to the various diplomatic and consular officers shall be in full for all the services rendered and personal expenses incurred by the persons respectively for whom such compensation is provided, of whatever kind such services or personal expenses may be, or by whatever treaty, law, or instructions they are required; and no allowance, other than such as is so provided, shall be made in any case for the outfit or return home of any such officer or person. (22 U.S.C. 125)

(f) *Allotment of pay by civilian personnel stationed abroad.* As provided by the act approved May 14, 1937 (5 U.S.C. 75c), and in accordance with the provisions of regulations issued by the Secretary of State, civilian officers and employees who are assigned for duty outside the continental limits of the United States may make allotments, in whole or in part, from their pay for the support of their families or relatives, for their own savings, or for other similar purposes.

§ 105.44 *Expenses allowable for transportation, per diem, and shipment of effects.* Officers and employees of the Foreign Service and other properly authorized persons traveling at Government expense, upon receipt of travel orders shall be allowed expenses in accordance with the Standardized Government Travel Regulations and, when applicable, regulations prescribed by the Secretary of State, as follows:

(a) Their actual and necessary transportation expenses and per diem;

(b) Transportation expenses and per diem of their families;

(c) Expenses of packing and transportation of their effects;

(d) Expenses for the preparation and transportation of the remains of officers and employees of the Foreign Service who have died or may die abroad or in the discharge of their official duties; and

(e) Expenses incurred in connection with the death, while in a travel status, of certain civilian officers and employees of the United States as authorized by the Act of July 8, 1940 and the regulations promulgated thereunder. (5 U.S.C. 103a and 103b)

Emergency travel. Whenever travel has been performed and expense incurred on account of an emergency, or without prior authority, the travel voucher must be approved by the head